

24VECV06515 24VECV06515

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-08-27

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Tentative Ruling

Minasyan v. FAB4, Case no. 24VECV06515

Hearing date August 27, 2026

Plaintiff

Minasyan's Motion for Attorney's Fees

Plaintiff

Minasyan sued defendants FAB4 LLC and FCA US LLC for violations of the Song-Beverly Act. A notice of settlement was filed 4/17/26; plaintiff moves for attorney's fees and costs. Defendants do not object to the requested costs of \$2,405.85 but oppose the requested attorney's fees of \$91,744 and assistant fees of \$1,770, a total of \$93,514.

Defendants

do not dispute that plaintiff is entitled to an award of attorney's fees but argue the requested fees are unreasonable in a rote lemon-law matter which settled without significant motion or trial practice. Defendants argue no lodestar multiplier should be awarded, and assert the rates and hours sought should be reduced for a final award of \$22,882.75.

Plaintiff

argues the nature, complexity and contingent basis of this case necessitate the full fees sought plus "a lodestar multiplier in the amount the Court deems appropriate." Mtn., 16:8-9. This was a basic lemon law case in which no depositions were taken, had four hearings (three prior to settlement), no trial

preparation and a single discovery dispute. See 10/28/25 Min. Order. Counsel requests 144.1 hours, including 11.8 hours for an assistant. In this uncomplicated matter, there is no basis for the court to award 144.1 hours, nor a lodestar multiplier. Costs and fees of \$93,514 is unreasonable. The court will reduce the rates and hours.

Counsel

requests 16.7 hours for this fees motion; 9.1 hours by H. Margarian, 1.2 hours by A. Margarian and 6.4 hours by Ter-Saakyan. The court awards 3 hours each for H. Margarian and Ter-Saakyan and 1.2 hours, as sought for work by A. Margarian, a total of 7.2 hours.

Regarding

work by H. Margarian, plaintiff requests \$650/hour until 6/30/25 and \$750/hour after 7/1/25. This is unreasonable for a basic lemon law matter with no novel issues. The court awards \$500/hour for all work done H. Margarian. Counsel requests 20.7 hours total for work by H. Margarian. See Decl. H. Margarian, para. 8. This includes 2.8 hours for the motions to compel, for which the court previously issued sanctions. See 10/28/25 Min. Order.

The court reduces the hours awarded for H. Margarian's work by 2.8 to 17.9. The court reduces H. Margarian's hours by a further 6.1 hours to reflect adjustments to the hours for this motion, a final award of 11.8 hours at \$500/hour, totaling \$5,900.

Plaintiff

requests \$550/hour for the work of counsel A. Margarian until 6/30/25 and \$670/hour after 7/1/25. The court awards a reasonable \$450/hour for all work. Plaintiff requests 12.3 hours for the work of A. Margarian. See Decl. A. Margarian, para. 6. At the reduced rate, this totals \$5,535. The court declines to reduce the hours awarded for A. Margarian's work, resulting in a final award of 12.3 hours at \$450/hour, totaling \$5,535.

Plaintiff

requests \$700/hour for counsel Ter-Saakyan. This is reduced to a reasonable \$475/hour. Plaintiff requests 99.3 hours for work done by Ter-Saakyan. See Decl. Ter-Saakyan, para. 4. At the reduced rate above this totals \$47,167.50. This includes 14.7 hours for the prior motions to compel, for which the court already issued sanctions. See 10/28/25 Min. Order. The court reduces the hours for Ter-Saakyan's work by 14.7. The court reduces Ter-Saakyan's hours by 3.4 to reflect the adjustments to the hours awarded for the instant motion, resulting

in a final award of 81.2 hours at \$475/hour, totaling \$38,570.

Plaintiff

requests \$150/hour for work done by assistant Oganyan. See Decl. H. Margarian, para. 55. Plaintiff requests 11.80 hours for assistant work, totaling \$1,770. Id. Plaintiff argues other Los Angeles Superior Court cases allowed an award for assistant fees. This is unavailing; rulings of other trial courts are not binding. Purely clerical or administrative tasks are not subject to an award of fees. See *Save Our Uniquely Rural Community Environment v. County of San Bernardino* (2015) 235 Cal.App.4th 1179, 1187. The court strikes the entirety of the \$1,770 assistant fees.

GRANTED

as modified above; the court awards plaintiff \$2,405.85 in costs, \$5,900 for the work of H. Margarian, \$5,535 for the work of A. Margarian and \$38,570 for the work of Ter-Saakyan, for a final award of \$52,410.85.